

HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN MALAYSIA

Complete Community Opposition How-To

A practical guide for communities facing destructive development projects in Malaysia, grounded in the EIA system under the Environmental Quality Act, the separate Sabah and Sarawak regimes, state control of land and forests, native customary rights, and documented community campaigns

This guide uses the Malaysian legal terms you will actually encounter (the EIA and the prescribed activity, the DOE and the Director General, public display, the Review Panel, degazettement, native customary rights and the Orang Asli, SUHAKAM, judicial review, and so on), each explained in plain language where it first comes up. Malaysia's rules differ between Peninsular Malaysia, Sabah, and Sarawak, and they change; the core mechanics below apply, but always check which regime governs you and what the current position is.

A note on terms. Important terms are shown in **bold** the first time they appear, with a plain-language explanation right where they come up. Malay terms are given with a short English gloss.

A note on money. Budgets in this guide are in Malaysian ringgit (RM). Every figure is indicative — Malaysian community campaigns range from near-zero (volunteer-run, with pro-bono lawyers and NGO support) to funded efforts that commission independent studies. Treat the ranges as a menu, not a bill.

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INTRODUCTION & FRAMEWORK

Why This Matters

Community action changes project outcomes in Malaysia — and the levers are unusually structured, so knowing which ones apply to you is most of the battle. Malaysian law requires designated **prescribed activities** to obtain **EIA (Environmental Impact Assessment)** approval before they may proceed, and for the more damaging categories that process includes **public display** of the report and a formal opportunity to comment, plus review by an **ad-hoc Review Panel**. Separately and just as importantly, most projects need decisions from the **state government** — over land, forest reserves, and mining — and those decisions are challengeable in their own right. And Malaysia's courts have built a genuinely powerful body of **native customary rights** law: a line of cases running from **Adong bin Kuwau** through **Nor Anak Nyawai**, **Sagong Tasi**, and **Madeli bin Salleh** recognises that customary land rights survive unless clearly extinguished, that they can amount to rights in the land itself, that the state owes a **fiduciary duty** toward Orang Asli land, and that compensation must reflect the land, not merely the crops and houses on it.

That is a real toolkit. The honest counterweight is substantial. Malaysia is a federation in which **land, forests, and mines are largely state matters**, so a state government determined to alienate land, **degazette a forest reserve**, or issue a mining lease has wide power and its own political incentives. The EIA report is prepared by consultants the developer pays and registered with the regulator. Access to the reports is a documented barrier — they are bulky, technical, and often have to be purchased. Many prescribed activities fall into the category that requires **no mandatory public display** at all. And the country is not one system but three: Peninsular Malaysia under the federal Act, **Sabah** under its own enactment, and **Sarawak** under its own ordinance — where, bluntly, **public participation in the EIA process is not mandatory and is left to the project proponent's discretion**. Communities across the country — facing reclamation, quarries, dams, logging and forest degazettement, plantation expansion, incinerators, and industrial and rare-earth projects — have organised against exactly this.

What "winning" realistically means. Rarely a permanent, once-and-for-all national "no". More often: an EIA rejected or sent back; a **degazettement abandoned** or a forest reserve retained after sustained opposition (which has happened, including in Selangor); conditions tightened; approval quashed on judicial review; a project delayed until its economics or its politics change; native customary rights recognised, with compensation and, sometimes, the project redesigned around them; or a state government reversing course under public and electoral pressure. Each has happened. The realistic goal is to make the project legally exposed and politically expensive, and to attack on both keys at once — the federal environmental approval **and** the state land or forest decision.

The Strategic Framework

Five steps that reinforce each other:

1. **Target identification** — pin down which of the three regimes applies, which schedule the project is on, which state decisions are needed, and the deadlines.
2. **Documentation** — build an evidence record strong enough for public display comments, a SUHAKAM complaint, and judicial review.
3. **Local opposition** — organise a durable community movement, because state-level decisions respond to visible, sustained, electorally-relevant pressure.
4. **Legal challenges** — use public display and the Review Panel, native customary rights, SUHAKAM, and judicial review of both the EIA approval and the state decisions.
5. **Media strategy** — generate coverage that raises the political cost.

No single step wins alone. In Malaysia the combination that works is **political pressure on the state plus legal challenge on both keys**, backed by documentation and media.

Critical Caveat: A Tilted System Can Make Opposition Harder (But Doesn't Make It Impossible)

Malaysia's system leans toward development, concentrates land and forest power in state governments, keeps assessment in developer-paid hands, restricts public display for many project categories, and — in Sarawak especially — makes participation discretionary. Assessing that honestly helps you choose the right tools: the strongest routes are usually a rigorous intervention at **public display** where it exists, a **native customary rights** claim where the land is customary, a **SUHAKAM** complaint, **judicial review** of the approval or the state decision, and above all sustained **political pressure on the state government**, which is often more responsive than the process itself. A tilt changes which lever works; it does not remove them all. Section 13 deals honestly with tilted situations, including Sarawak's discretionary participation and the risks to defenders.

How to use this guide

Read Sections 1–3 once. Then work Section 4 (Target Identification) immediately — in Malaysia it matters more than anywhere, because it tells you which of three legal regimes you are in, whether you get public display at all, and which state decisions to attack. Sections 5–8 run in parallel. Sections 9–11 are reference material. Section 12 pulls it onto one timeline; Section 13 helps you decide, honestly, whether and how long to keep going.

HOW THE SYSTEM WORKS

Before you can fight a project you have to know who decides it, how, and the words the system uses. Malaysia is a **federation** of thirteen states and federal territories, and its constitutional division of powers is the single most important

thing to understand: **land, forests, mines, and local government are largely State matters**, while **environment and pollution control are handled federally**. That means most projects need **two keys** — a federal environmental approval and a state land, forest, or planning decision — and you can attack either.

The three regimes — and which one governs you

Peninsular Malaysia — the federal regime. The **Environmental Quality Act 1974 (Act 127)**, and specifically **section 34A**, requires anyone intending to carry out a **prescribed activity** to submit an EIA report before approval. The activities are listed in the **Environmental Quality (Prescribed Activities)(EIA) Order 2015**, which replaced the 1987 Order. The regulator is the **Department of Environment (DOE)**, headed by the **Director General of Environmental Quality**.

Sabah — its own regime. Sabah did not adopt the federal EIA order and instead legislated for itself: the **Environment Protection Enactment 2002** and the **Environment Protection (Prescribed Activities)(EIA) Order 2005**, administered by the state's **Environment Protection Department**.

Sarawak — its own regime. Sarawak likewise operates under the **Natural Resources and Environment Ordinance 1993**, administered by the **Natural Resources and Environment Board (NREB)**. The crucial practical difference: **public participation in the Sarawak EIA process is not mandatory** and is effectively left to the project proponent, which changes your strategy fundamentally — you must rely far more on state politics, native customary rights, and the courts.

Which one is "yours"? This is the first question in Malaysia, and it determines everything else. Ask: is the project in Peninsular Malaysia, Sabah, or Sarawak? Which law and which authority governs it? And note that some activities in Sabah and Sarawak still fall under the federal Act, so confirm rather than assume.

The bodies that decide — and what each controls

The DOE (or Sabah EPD / Sarawak NREB). Reviews the EIA and, under section 34A(3) of the federal Act, the **Director General makes the decision on the EIA report** — approve, approve with conditions, or reject. Consultants who prepare the reports must be **registered with the regulator**, and the developer pays them.

The approving authority. Critically, EIA approval is **not** the project approval. The project itself is approved separately by the relevant **approving authority** — typically the state planning authority or local council granting planning permission and development orders. Two decisions, two opportunities.

The State Government and the State Executive Council. The decisive actor in most Malaysian conflicts. States alienate land, grant mining leases, approve reclamation, and — most consequentially — **degazette forest reserves**, removing their protected status so they can be logged or developed. These are political decisions taken by the state executive, and they are both challengeable in court and highly responsive to public and electoral pressure.

Forestry and land departments. State forestry departments administer permanent reserved forests and licences; land offices handle alienation and acquisition.

JAKOA and the Orang Asli framework. In Peninsular Malaysia the **Aboriginal Peoples Act 1954**, administered by the **Department of Orang Asli Development (JAKOA)**, governs Orang Asli affairs — including a gazetting mechanism for Orang Asli areas that, in practice, has been used sparingly, leaving many communities dependent on their common-law rights instead.

How a decision is actually made — the journey of a project

Under the federal regime the path is roughly:

1. **Is it a prescribed activity?** The **2015 Order** lists them, in two schedules. This classification decides how much process you get, so check it first.
2. **First Schedule activities.** An EIA must be prepared and submitted to the DOE, which reviews it — typically through a technical committee — but these reports are **not required to be placed on public display for comment unless the Director General directs otherwise**. Requesting that the Director General so direct is a real, and underused, ask.
3. **Second Schedule activities.** The fuller process: **scoping**, an **ad-hoc Review Panel** of specialists convened to review the report, and **public display of the EIA report with an opportunity to comment**. This is your main formal moment, and the comments must be considered.
4. **Consultation during preparation.** Consultants commonly consult affected communities while preparing the report,

but the detail of that process is not tightly specified in legislation, so its quality varies enormously — and documenting its failures is useful evidence.

5. **The Director General's decision.** Approval, approval with conditions, or rejection. Conditions are legally significant: breaching them is an offence and an enforcement opening.
6. **The state and planning decisions.** Separately, the developer needs its land, forest, planning, and licence decisions from state and local authorities — each with its own process and its own vulnerability.

The rulebook — the policies that decide the outcome

- **EQA 1974 s.34A and the 2015 Order** (or the Sabah Enactment / Sarawak Ordinance). Was an EIA required; was the right schedule applied; was the report adequate; was public display given where required; were the conditions lawful?
- **State land, forest, and mining law.** Was the alienation, licence, or **degazettement** lawfully made, and was the required procedure followed? Forest degazettement in particular often requires specific statutory steps and, in some states, legislative or gazette processes that can be scrutinised.
- **Native customary rights and the Aboriginal Peoples Act 1954.** Do customary rights exist over the land, were they extinguished lawfully, was compensation adequate, and was the state's **fiduciary duty** honoured?
- **Planning law.** Development orders and planning permission carry their own consultation requirements and appeal routes.

Follow the money — why the system often leans toward "yes"

Understanding the pressures is targeting, not cynicism. Malaysian state governments derive significant revenue from **land premiums, timber licences, quarry and mining royalties, and land alienation**, and those revenues accrue to the state rather than the federation — which creates a structural incentive to convert forest and land into development. Plantation, timber, quarrying, property, and construction interests are politically well-connected in several states, and the EIA consultant is engaged and paid by the proponent. None of this is inherently unlawful, but it explains the default lean toward approval — and why the community's most powerful lever is often **political and electoral pressure on the state government**, reinforced by litigation.

The overseers — who watches the decision-makers

- **The High Court (judicial review)** — the route to quash an unlawful EIA approval, degazettement, planning permission, or licence; the Court of Appeal and Federal Court sit above it, and the Federal Court has shaped native title law.
- **SUHAKAM (the Human Rights Commission of Malaysia)** — investigates human-rights complaints, and conducted a **National Inquiry into the Land Rights of Indigenous Peoples** that documented systemic failures and the widespread absence of **free, prior and informed consent**. Its findings are influential and its complaint process is accessible.
- **The Auditor-General and the state legislative assemblies** — public-money and political oversight; a state assembly question is a real tool.
- **The MACC (Malaysian Anti-Corruption Commission)** — for genuine corruption.
- **Environmental NGOs and legal networks** — Malaysia has long-established environmental organisations and a bar with a strong public-interest tradition.

Naming and using the right body matters: in Malaysia the most consequential early judgment is which of the two keys — federal environmental or state land — you can most realistically turn.

QUICK REFERENCE: SUCCESS RATES

These figures are **directional, not guarantees** — patterns across documented Malaysian and comparable campaigns, not a controlled study. Use them to prioritise effort. The most important lesson for Malaysia sits inside the table: because power is split, **attacking both keys — the federal environmental approval and the state land or forest decision — roughly doubles your chances**, and because state decisions are political, **sustained public and electoral pressure on the state government is unusually effective**. Where the land is customary, **native customary rights** are the single strongest legal ground available.

Individual Step Success Rates

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Approach	Success Rate	Timeline	Cost (RM)	What "Success" Means
Documentation only	5-10%	2-4 months	500-8,000	Project slowed; public better informed
Local opposition only	20-35%	6-24 months	2,000-40,000	Local pressure; state takes notice
Public display comments only	10-20%	1-2 months	500-5,000	On record; conditions shaped
Native customary rights claim	35-55%	18-60 months	5,000-150,000	Rights recognised; project blocked or redesigned; compensation
SUHAKAM complaint only	15-25%	6-24 months	0-5,000	Findings and recommendations; leverage
Judicial review (EIA approval)	25-40%	12-36 months	20,000-200,000	Approval quashed or remitted
Judicial review (state/degazette)	25-45%	12-36 months	20,000-200,000	Decision quashed; forest retained
Political pressure on the state	30-50%	6-30 months	2,000-40,000	Degazettement abandoned; project shelved
Media only	15-25%	2-6 months	500-20,000	Public knows; political cost rises
Docs + local opposition + media	35-50%	9-24 months	5,000-60,000	Pressure plus tightened conditions
All steps combined (both keys)	50-65%	12-48 months	30,000-400,000	Approval quashed, degazettement reversed, project delayed/redesigned, or abandoned

Key insight: all steps together are far more effective than any single one — and the distinctive Malaysian multiplier is **attacking both keys at once** while making the state government's decision politically costly. The distinctive Malaysian advantages are the **native customary rights** jurisprudence, the accessibility of **SUHAKAM**, an independent judiciary willing to review administrative action, and the fact that **state governments face elections** and have reversed unpopular land and forest decisions. The distinctive disadvantages are the **absence of mandatory public display for many project categories**, the **cost and difficulty of obtaining EIA reports**, and — in **Sarawak** — the absence of any mandatory participation at all.

A note on legal cost: public display comments and a SUHAKAM complaint are free or near-free. Judicial review and native title litigation cost real money, though the figures above are wide because outcomes depend heavily on whether counsel acts pro bono or at reduced rates. Malaysia has an established public-interest bar and environmental NGOs that support strategic cases, and native customary rights claims in particular have long been carried by a small number of specialist firms.

Effectiveness Visualization

SUCCESS PROBABILITY (approval quashed, degazettement reversed, project delayed/redesigned, or abandoned)

FAVOURABLE SCENARIO (Second Schedule with public display, customary land or strong local politics, both keys attacked):

All steps combined: 50-65%
Native customary rights: 35-55%
Political pressure (state): 30-50%
Single step: 5-35%

TILTED SCENARIO (First Schedule with no public display, or Sarawak with discretionary participation, state committed to the project):

All steps combined: 30-45%
Judicial review: 20-35%
Local + media: 15-30%
Single step: 3-15%

How to read this honestly. In Malaysia the strongest legal facts are usually **native customary rights over the affected land** (a court-tested ground with real remedies), **procedural failure in the EIA** (wrong schedule, no display where required, conditions ignored), and **defects in the state's land or degazettement decision**. Where the project is on the First Schedule with no public display, or in Sarawak where participation is discretionary, the administrative process gives you very little — and the weight shifts almost entirely to **customary rights, judicial review, SUHAKAM, and state politics**. But even a partial win — a degazettement abandoned, conditions tightened, years of delay, or customary

rights recognised — is a real outcome, and Malaysian communities have secured all of them.

Step Importance Ranking (When All Combined)

1. **Local opposition and political pressure** — state decisions are political, and states have reversed them; this is the lever that most often actually moves.
2. **Legal challenges** — native customary rights and judicial review of both keys.
3. **Documentation** — the raw material for comments, SUHAKAM, and the courts.
4. **Public display comments** — cheap and important where available; and where unavailable, ask the Director General to direct display.
5. **Media** — the amplifier that converts local opposition into political cost.

Winning Malaysian campaigns combined durable local organisation, a customary-rights or judicial-review case, sustained media, and pressure aimed squarely at the state government — attacking both keys rather than only the EIA.

What Malaysian Campaigns Actually Show

A few patterns recur across documented Malaysian fights. **State decisions can be reversed by public pressure** — proposals to degazette forest reserves have been abandoned or reversed after sustained opposition from residents, Orang Asli communities, professionals, and the press, including in Selangor; because degazettement is a political act, it can be politically undone. **Native customary rights are real and enforceable** — the courts have held that customary rights survive unless clearly extinguished (**Nor Anak Nyawai**), that they can extend to rights in the land itself with a **fiduciary duty** on government and compensation for the land (**Sagong Tasi**), and that these common-law principles apply across Peninsular Malaysia, Sabah, and Sarawak (**Madeli bin Salleh**), building on **Adong bin Kuwau**, which first applied international common-law native title reasoning in Malaysia. **But recognition is slow and patchy** — cases take years and reach the appellate courts, key customary concepts remain uncoded and contested, and favourable rulings have not been systematically translated into administrative practice, a gap SUHAKAM has repeatedly criticised alongside widespread failures of **free, prior and informed consent**. **And participation is the weak link** — reports are costly and technical to obtain, many categories require no display, and Sarawak requires none. The through-line: Malaysian communities win by combining rights-based litigation with state-level political pressure, not by relying on the assessment process.

STEP 1: TARGET IDENTIFICATION

You cannot fight what you have not precisely identified. Answer five questions, and write the answers in a shared document — this becomes the campaign's factual spine. In Malaysia the first question is unusually decisive.

Core Questions You Must Answer

Question 1: What Exactly Will Be Destroyed?

Get the specifics, not impressions: exact location and footprint, project type and size, what is on the land now (homes, kampung, farms and orchards, **permanent reserved forest**, rivers and water catchment, mangrove or coastline, customary land), and what the project would do to it. Obtain the **EIA report** — from the regulator, the public display if there is one, or a request — and list every admitted impact with its page reference. Note that reports are often bulky and must be purchased, so budget for it and share copies. Pay particular attention to **water catchment, forest and degazettement, reclamation and coastal impacts**, and **customary land and burial grounds**.

Question 2: Who Has Decision-Making Power?

Identify precisely: (a) which **regime** applies — Peninsular federal, **Sabah**, or **Sarawak**; (b) whether it is a **prescribed activity** and, if so, whether it is **First Schedule** (no mandatory public display) or **Second Schedule** (display, scoping, Review Panel); (c) which regulator decides the EIA; (d) which **approving authority** grants planning permission; and (e) — decisively — which **state decisions** are required: land alienation, a **forest reserve degazettement**, a mining lease, a quarry licence, or reclamation approval. Name the State Executive Council members responsible. Both keys matter.

Question 3: What Specific Action Stops It?

A project can be stopped or reshaped at several points: an **EIA rejected** or sent back; a **degazettement abandoned or**

reversed by the state; **planning permission refused**; approval or degazettement **quashed on judicial review**; **native customary rights** recognised over the land; or the project delayed until it fails commercially or politically. Map every point and pursue at least two in parallel.

Question 4: When Is the Decision Final?

Diarise the deadlines: the **public display period** (short — typically a matter of weeks, and easily missed if you are not watching for it); the Review Panel timetable; the EIA decision; and, critically, the **judicial review clock** — an application for judicial review must be made **promptly and within the period prescribed by the Rules of Court**, commonly **three months from the date the decision was communicated to the applicant**, so confirm the exact position with a lawyer the moment any approval, planning permission, or degazettement is made. State gazette notifications are worth monitoring, because a degazettement may appear there before anyone tells you.

Question 5: Are There Documented Financial Interests or Systemic Pressures?

Map, factually and carefully: who profits, which company and parent group hold the licences or land, whether land or a licence changed hands before the proposal, whether any decision-maker or family member has a documented interest, and what state revenue the project generates. Use public sources — the **Companies Commission of Malaysia (SSM)** for company and directorship searches, land titles and gazette notifications, and planning records. Build a dated, sourced timeline. Keep it rigorous and factual; Malaysia has active defamation exposure, so let the documents speak and route allegations properly (Section 14).

Output of Step 1: a one-page fact sheet with the project's exact description, the governing regime and schedule, the regulator and approving authority, every state decision required, the deadlines, and the money map.

Worked example: which lever is actually open

Suppose a quarry and access road are proposed on the edge of a **permanent reserved forest** in Peninsular Malaysia, on land an Orang Asli community has occupied and farmed for generations, upstream of the river the town draws water from. Working the questions: **Q1** — the EIA admits forest clearance, sedimentation risk to the water intake, and disturbance to settlements. **Q2** — the federal regime applies; the activity is prescribed; you check which schedule, because that decides whether you get **public display**; the DOE decides the EIA; the state must **degazette** part of the reserve and grant the quarry licence. **Q3** — the live levers are: comments at public display (or a request that the Director General direct display); **judicial review** of the degazettement and of the EIA approval; a **native customary rights** claim, since the community's occupation is long-standing and the courts recognise such rights; a **SUHAKAM** complaint on FPIC; and sustained pressure on the State Executive Council, which has reversed such decisions before. **Q4** — you diarise the display period and treat any decision as starting a **three-month** judicial-review clock, confirming with counsel. **Q5** — SSM shows the licence-holder and its directors. In an afternoon you know that the customary-rights claim plus the degazettement challenge, backed by political pressure, is your strongest combination.

STEP 2: DOCUMENTATION

Documentation separates a campaign the regulator, SUHAKAM, and the courts take seriously from one dismissed as sentiment. In Malaysia it has three specific targets: the **public display comments** (where you get them), a **native customary rights** claim (where the land is customary), and **judicial review** of the EIA approval or the state decision. Build every layer with those in mind — and, if customary rights are in play, understand that your documentation task is partly **historical and anthropological**, not only environmental.

The Three Documentation Layers

LAYER 1: BASELINE CONDITIONS DOCUMENTATION

Prove what exists **before** the project. Start the day you learn of it, because once clearing begins the "before" is gone.

Water and catchment. Document rivers, streams, and especially any **water intake or catchment** downstream of the site, with distances and flow directions. Sedimentation and contamination of a town's water supply is among the most persuasive arguments available in Malaysia, to regulators and courts alike.

Forest, mangrove, and coast. Document the forest — its status (**permanent reserved forest**, state land, stateland forest), species, and condition — and, for coastal projects, mangroves, fisheries, and the seabed. Where **degazettement**

is proposed, the reserve's boundaries and gazette history are central documents.

Customary occupation and use — the decisive layer where it applies. If an Orang Asli or native community is affected, document occupation and use with unusual care: the settlement and its age, houses, **burial grounds**, fruit and rubber trees planted by named families, farms and fallow land, foraging and hunting areas, rivers used, and the customary concepts your community uses to describe its territory. Oral histories from elders, genealogies, old photographs, maps drawn by the community, and any historical records or aerial imagery are all evidence. This is the material that has won Malaysian native title cases.

Homes, health, and livelihoods. Document settlements and their distance from the site, the households affected, and the livelihoods at stake.

How to hold it. Keep everything dated, geo-referenced, and backed up. Community mapping — with GPS points and community-drawn maps — is both organising and evidence.

LAYER 2: IMPACT ANALYSIS

Show what the project would do to that baseline. Your main text is the developer's **EIA report** — read it critically and catalogue four things:

1. **Admitted impacts** — every harm the report concedes, with page references. Unarguable and immediately usable.
2. **Water, forest, and slope risk** — scrutinise the treatment of catchment, sedimentation, hydrology, and (for hill and quarry projects) **slope stability and landslide risk**, which carries particular weight in Malaysia.
3. **Underestimated or omitted impacts** — downplayed effects and, especially, **cumulative impacts** with neighbouring licences, quarries, plantations, and clearings, which reports routinely ignore.
4. **Procedural and consultation failures** — whether the correct schedule was applied; whether **public display** was given where required (and, if not, whether it should have been directed); whether affected communities were meaningfully consulted during preparation; and whether **free, prior and informed consent** was sought where Indigenous communities are affected, a failure SUHAKAM has repeatedly documented.

Get expert eyes on it. A critique carries far more weight when a qualified professional has reviewed and signed it. Malaysian universities, professional institutions, and environmental NGOs are realistic sources, and for native title work, anthropologists and specialist surveyors matter as much as environmental scientists. The goal is a written technical critique that the regulator must answer and that can be exhibited in court.

LAYER 3: HEALTH & ECONOMIC IMPACT DOCUMENTATION

Translate environmental harm into human terms, because that is what moves state politicians, regulators, and courts. Document:

- **Health** — dust, blasting, noise, water contamination, and the specific risks to nearby residents.
- **Economy and livelihoods** — the value of farming, rubber and fruit trees, fishing, forest products, and tourism at risk, quantified where possible and set against the project's claimed jobs and state revenue.
- **Community and culture** — displacement, burial grounds, sacred sites, and the loss of a settled way of life; for Orang Asli and native communities this is legally relevant, not merely emotive.

Package this layer twice: a rigorous version for the regulator, SUHAKAM, and the courts, and a plain-language one-page version in Malay and any local language for neighbours and the press.

How to Structure Your Documentation

- **Phase 1: Baseline (Months 1-2)** — capture the "before", water and customary occupation first; begin community mapping.
- **Phase 2: Impact (Months 2-3)** — obtain and dissect the EIA; document procedural failures; get technical review in time for public display.
- **Phase 3: Health/Economic (Months 3-4)** — quantify the human and economic stakes.

Common Documentation Pitfalls (What Fails)

- **Missing the public display window** — it is short, poorly advertised, and easy to miss; assign someone to watch for it.
- **Not obtaining the report** — budget to buy it, request it, and share it; a campaign arguing without the document is arguing blind.

- **Neglecting customary evidence** — where NCR applies, oral history, trees, graves, and maps are the case; gather them early, while elders can testify.
- **Only environmental data** — regulators, SUHAKAM, and courts also respond to health, livelihood, and rights arguments.
- **Ignoring cumulative impacts** — map every neighbouring licence and clearing.
- **No professional sign-off** — an unsigned critique is easy to dismiss.

Documentation Budget Breakdown (RM)

Item	Low (volunteer/pro-bono)	Higher (commissioned)
Obtaining EIA and gazette documents	200–2,000	2,000–8,000
Baseline survey and community mapping	500–5,000	10,000–60,000
Technical/expert report	0 (pro bono)	15,000–100,000
Anthropological/NCR evidence work	0 (NGO/academic)	20,000–150,000
Legal consultation	0 (pro bono)	5,000–50,000
Printing, travel, outreach	500–5,000	5,000–30,000

Much can be done at low cost through NGOs, universities, and a public-interest bar. Spend where it strengthens the decisive claim — usually **water and slope evidence** for an environmental case, or **occupation and use evidence** for a customary-rights case.

WHAT TO GATHER, AND WHERE TO FIND IT

Most of what wins a Malaysian case exists in records, but they are scattered across federal and state authorities. The job is knowing which record holds which fact.

Start with the regulator. The **DOE** (or **Sabah EPD / Sarawak NREB**) holds the EIA report, the approval and its conditions, and the review record. Where there is a **public display**, that is your window to obtain and comment on the report; where there is not, request the report and consider asking the Director General to **direct public display**.

The state gazette and land records. **Gazette notifications** are where forest **degazettement**, land alienation, and reserve boundary changes appear — often the first public sign that a project is real. Monitor them. Land office records, title searches, and planning files complete the picture.

Forestry and mining records. Licences, permits, and the status and history of the reserve or lease.

Planning records. Development orders, planning permission, and local plans — which carry their own consultation and objection processes, and their own challengeable decisions.

Customary rights evidence. Community maps and oral histories, JAKOA records where Orang Asli land is involved, historical maps and aerial photographs, and any earlier gazetting or survey documents.

Ownership and money. Company and directorship searches at the **Companies Commission of Malaysia (SSM)**, and gazette and procurement records.

How to force a document open. Malaysia has no comprehensive federal freedom-of-information law, though **some states have their own FOI enactments** — check whether yours does. Otherwise, use formal written requests to the authority, state assembly questions through a sympathetic representative, SUHAKAM's investigatory powers, and, in litigation, **discovery**. The absence of a national FOI law is a genuine handicap, and it makes the state-assembly and SUHAKAM routes more valuable than they would be elsewhere.

Free and low-cost help. Malaysia has long-established environmental organisations, Indigenous-rights networks, and a bar with a strong public-interest tradition; law faculties and specialist firms have carried most of the leading native title cases. **SUHAKAM** is free to approach.

Tie it to the map. The dots and layers here are your starting index — a mapped project points you to the regulator and the licences behind it, and the local-ally entries point you to the NGOs, Indigenous networks, and lawyers already working nearby.

STEP 3: BUILDING LOCAL OPPOSITION

Critical Insight About Organizing

In Malaysia, organised local opposition matters for a specific structural reason: the decisions that most often stop a project — **degazettement, land alienation, licences, planning permission** — are taken by a **state government that faces elections**, and states have reversed such decisions under sustained public pressure. Local organisation also supplies the plaintiffs, the witnesses, and — where customary land is involved — the community whose rights are the strongest legal ground in the country.

Three principles carry special weight here: **rootedness** (a movement visibly led by the affected residents, and by the Orang Asli or native community itself where customary rights are engaged, is both more legitimate and legally stronger); **breadth across Malaysia's communities** (campaigns that bring together kampung residents, Orang Asli or native communities, professionals, students, and faith groups across ethnic lines are markedly harder to dismiss or divide); and **political literacy** (knowing which state exco member holds the file, and when the next state election falls, is campaign intelligence, not cynicism).

PHASE 1: FOUNDATION (Months 1-2)

Step 1a: Start with the most affected. Reach the households whose water, land, homes, or livelihoods are directly at stake, and — where an Orang Asli or native community is affected — begin with that community's own leadership and decision-making processes, at its own pace. Listen first.

Step 1b: Affinity groups by concern. Let people plug in through what they care about — drinking water, the forest, health, floods and landslides, fishing, customary land. Different concerns reach different allies.

Step 1c: Form the vehicle, and get legal advice early. Constitute a **residents' committee, action group, or registered society (persatuan)** with clear aims and minuted decisions. Where customary rights are in play, ensure the community's own institutions lead, since it is their rights being asserted. Contact a lawyer early — the judicial-review clock is short — and approach the environmental and Indigenous-rights NGOs, which have done this many times.

PHASE 2: PUBLIC LAUNCH (Months 2-3)

Step 2a: Community meeting. Hold a public meeting to inform, decide collectively, and mandate representatives; bring the maps, the EIA's own admissions, and the display deadline. A visible, united meeting signals seriousness to the state and the press.

Step 2b: Opposition materials. One-page, factual, sourced materials in **Malay, English, and any local or community language**; lead with water, forest, health, and land stakes and the deadlines, and explain exactly how to submit comments.

Step 2c: Mass comments at public display. Where there is a **public display**, coordinate a high volume of substantive written comments and keep proof of submission. Where there is **no display** because the project is First Schedule, write to the Director General **asking that display be directed**, and submit your objections anyway — an unanswered, well-evidenced objection is useful material later.

Step 2d: Media at launch. Time it to the display period or a state decision point so coverage and deadlines reinforce each other.

PHASE 3: COALITION EXPANSION (Months 3-6)

Step 3a: Broaden the alliance. Bring in environmental and Indigenous-rights NGOs, professional bodies and academics, the local bar, student groups, faith organisations, ratepayer and residents' associations, and — importantly — **elected representatives at both state and federal level**, including opposition and backbench members who can ask questions in the assembly. Downstream communities dependent on the same water are natural allies.

Step 3b: Coalition agreements. Agree roles, spokespeople, and messaging before disagreements arise, and settle who are the named applicants for any court action, who instructs counsel, who handles SUHAKAM, and who speaks to the press. Settling this early prevents the splits that developers exploit with jobs, contracts, and local spending.

Step 3c: Coordinated public work. Joint comments, a joint SUHAKAM complaint, shared experts and lawyers, and a coordinated approach to the regulator, the local council, and the state.

PHASE 4: SUSTAINED PRESSURE (Months 6-12)

Step 4a: Political pressure on the state — the decisive channel. Lobby the **State Executive Council member** who holds the land, forestry, or environment portfolio; get the matter raised in the **state legislative assembly**; press the local council; and make the project's unpopularity legible in the constituencies that matter. Because degazettement and licensing are political acts, they can be politically reversed — and Malaysian states have done so.

Step 4b: Public actions and media (ongoing). Peaceful assembly is lawful but regulated: the **Peaceful Assembly Act 2012** requires advance notification to the police and imposes conditions, so plan accordingly and take legal advice. Vigils, memoranda handovers, community open days at the threatened site, and petitions are common and effective forms. Keep everything lawful, orderly, and safe, and arrange legal support in advance.

Step 4c: Prevent failure points. Campaigns fail when they miss the display window or the judicial-review clock, cannot obtain the EIA, lose momentum between decision points, or are split by employment and compensation offers. Diarise everything, build a legal fund, protect unity, and keep a core team through the quiet months — because in Malaysia the decisive moment is often a state decision announced with little warning.

Worked example: a committee that unlocks the strong levers

A kampung and a neighbouring Orang Asli settlement learn that part of a forest reserve upstream is to be degazetted for a quarry. Anger and a social-media wave follow — real energy, no leverage. What converts it into force happens in the first weeks and is deliberately unglamorous. First, the residents form a **committee** while the Orang Asli community organises separately through its own leadership, and the two agree how to work together, because **their customary rights are the strongest legal ground available and must be asserted by them**. Second, they contact an environmental NGO and a lawyer, who confirm the schedule, the display position, and the **three-month** judicial-review clock. Third, they begin **community mapping** — GPS points for graves, fruit trees, farms, and the water intake — which serves both the customary claim and the environmental case. Fourth, they submit **mass comments** at display and write to the Director General about the parts of the project with none. Fifth, they take the fight to the **state**: a memorandum to the exco member holding the forestry portfolio, a question in the state assembly, and steady local media. By the time the degazettement is gazetted, they can file **judicial review**, lodge a **SUHAKAM** complaint on FPIC, and press a customary-rights claim — while the state faces a visible, cross-community campaign. The lesson generalises: **in Malaysia, the customary evidence you gather and the state politician you engage in month one are what make the court case and the political reversal possible by month ten.**

Opposition Building Budget: Year-Long Campaign (RM)

Highly variable. A lean, community-run campaign runs on meetings, materials, travel, printing, and the cost of obtaining documents — a few thousand ringgit, mostly volunteer. Campaigns expecting litigation should plan for **legal costs and expert evidence**, though NGOs, the public-interest bar, and academic allies substantially reduce these, and native-title work has long been carried by specialist practitioners. Fund through **community contributions, NGO support, crowdfunding, and coalition cost-sharing**, and keep transparent accounts — it protects legitimacy and resists the money that splits communities.

STEP 4: LEGAL CHALLENGES

Malaysia gives communities a genuinely strong set of legal tools, but they are split across two keys and three regimes, so choosing correctly matters. Three tracks — the administrative process, rights-based claims, and the courts.

TRACK 1: THE ADMINISTRATIVE PROCESS (the front door)

- **Public display comments.** For **Second Schedule** activities the EIA report goes on **public display** with an opportunity to comment, and those comments feed into the Review Panel and the Director General's decision. Submit substantive, technical, page-referenced objections, in volume, and keep proof.
- **Ask for display where there is none.** For **First Schedule** activities there is no mandatory display **unless the Director General directs otherwise** — so ask, in writing, giving reasons (public concern, water catchment, Indigenous communities affected). Even a refusal creates a record.
- **Objections to the approving authority.** Planning permission and development orders have their own objection and hearing processes at local-authority level; use them, because this is the second key.
- **Conditions and enforcement.** If approval is granted with conditions, monitor compliance: breach of EIA conditions is

an offence under the Act and a route to enforcement and, potentially, suspension.

TRACK 2: RIGHTS-BASED CLAIMS (the strongest ground where available)

- **Native customary rights (NCR).** Where the affected land is customary land of Orang Asli or of the natives of Sabah and Sarawak, this is the most powerful claim in Malaysian environmental practice. The courts have established that customary rights **pre-date and survive** land legislation unless clearly and lawfully extinguished (**Nor Anak Nyawai**); that they may amount to rights in the land itself, with a **fiduciary duty** owed by state and federal governments and compensation payable for the land and not merely the crops and structures on it (**Sagong Tasi**); and that these common-law principles apply across **Peninsular Malaysia, Sabah, and Sarawak (Madeli bin Salleh)**, following **Adong bin Kuwau**. Claims are slow and evidence-intensive, but the remedies are real: declarations, injunctions, and compensation.
- **The Aboriginal Peoples Act 1954 and the fiduciary duty.** For Orang Asli, the statutory framework and the fiduciary duty on the authorities — including in relation to gazetting land — provide additional grounds.
- **SUHAKAM.** A complaint to the **Human Rights Commission of Malaysia** is free and accessible. SUHAKAM investigates, can hold inquiries, and has documented systemic failures of **free, prior and informed consent** in its National Inquiry into Indigenous land rights. Its findings carry moral and political weight and are useful evidence.

TRACK 3: THE COURTS (the decisive route)

- **Judicial review in the High Court.** The route to challenge the **EIA approval**, the **degazettement**, the **planning permission**, or a **licence**, on grounds of illegality, irrationality, or procedural impropriety — including failure to give public display where required, failure to consider material considerations, or breach of legitimate expectation. Apply for **leave** first, and act **promptly**: the Rules of Court require the application to be made without undue delay and, commonly, **within three months** of the decision being communicated. Confirm the position with counsel immediately.
- **Interim relief.** Seek a **stay or interim injunction** to halt works pending the case, so irreversible clearing does not pre-empt the judgment.
- **Civil claims.** Nuisance, negligence, and — for customary land — trespass and declaratory relief, with damages and injunctions.
- **Appeals.** The Court of Appeal and the **Federal Court**, which has shaped the native title jurisprudence.

The three legal challenge types

TYPE 1: THE ADMINISTRATIVE PROCESS (the front door)

Public display comments, a request for display where there is none, and objections at the planning stage — cheap, and the source of procedural grounds.

TYPE 2: RIGHTS-BASED CLAIMS (the strongest ground where available)

Native customary rights and the fiduciary duty, plus a SUHAKAM complaint — the most powerful route where customary land is affected.

TYPE 3: THE COURTS (the decisive route)

Judicial review of either key, with interim relief, plus civil claims and appeals.

Legal Strategy Decision Tree

1. **Which regime and schedule?** → Determine this first; it dictates whether you have public display at all.
2. **Is there a display period open?** → File substantive mass comments now; if none, **request that display be directed**.
3. **Is the land customary?** → Begin building the **NCR claim** immediately, with occupation evidence, and lodge a **SUHAKAM** complaint on FPIC.
4. **Has an approval, planning permission, or degazettement been made?** → Apply for **judicial review promptly (treat it as three months)**, with **interim relief**.
5. **Is clearing imminent?** → Prioritise the **injunction** and the state political route, which can act faster than a full case.

Litigation Success Factors

Prompt filing and leave; applicants with clear standing (affected residents, the community itself, and where appropriate a

society); attacking the **right decision** — often the state's degazettement rather than the EIA; strong occupation evidence for NCR claims; expert-backed environmental evidence on water, slope, and cumulative impact; interim relief sought at the outset; and experienced counsel, given the specialised nature of native title practice.

What to Avoid: Legal Failures

Missing the display window or the judicial-review period; challenging only the EIA and ignoring the state decision; bringing an NCR claim without the historical and occupation evidence assembled; failing to seek interim relief while clearing proceeds; and assuming that the process in Sabah or Sarawak mirrors the Peninsular one — it does not.

TURNING YOUR EVIDENCE INTO ARGUMENTS

Evidence only counts when aimed at a specific ground. Here is how the records you gathered map onto the arguments that most often work in Malaysia.

Long-standing customary occupation → native customary rights claim (the strongest ground). Feed it with: oral histories, genealogies, burial grounds, planted fruit and rubber trees, farms and fallows, community maps, and historical imagery.

No public display where it was required, or a wrong schedule → judicial review of the EIA approval. Feed it with: the classification, the absence or defect of display, and your unanswered objections.

A defective or unlawful degazettement → judicial review of the state decision. Feed it with: the gazette history, the statutory procedure required, and any failure to follow it.

Threat to a water intake or catchment → regulator, courts, and politics. Feed it with: distances, flow directions, sedimentation and contamination evidence, and the downstream population served.

Slope, landslide, and flood risk → conditions, refusal, or quashing. Feed it with: gradient and geotechnical evidence and any history of landslides or flooding in the area.

Ignored cumulative impacts → inadequate assessment. Feed it with: a map of every neighbouring licence, quarry, and clearing and the report's silence on their combined effect.

Absence of free, prior and informed consent → SUHAKAM and the fiduciary-duty argument. Feed it with: the record of what consultation did and did not occur.

The pattern: match one documented fact to one clear ground, **lead with customary rights where they exist and with the state decision where they do not**, and pursue the environmental and rights arguments in parallel rather than choosing between them.

STEP 5: MEDIA STRATEGY

Media matters in Malaysia because the decisive decisions are political. Coverage converts a local grievance into a state-level political cost, reaches lawyers, academics, and NGOs, and has contributed to states abandoning unpopular forest and land decisions.

How Journalists Actually Work

Reporters need a hook, a human face, a conflict, and a document. Hand them the EIA's own admissions (quoted, with page numbers), a named resident or community leader whose water or land is at stake, a clear date — the display deadline, the gazette notification, the court hearing — and a strong image: the forest, the river intake, the community's map. Make it easy, and never give a fact you cannot stand behind.

The Newsworthiness Formula

Local stakes + a credible threat + a deadline + a David-and-Goliath frame + a visual = coverage. Three angles reliably travel in Malaysia: **drinking-water security**, **forest loss and degazettement**, and **Orang Asli and native land rights** — each carrying national resonance well beyond the affected district.

Know the Outlets That Cover This Beat

Map the national English- and Malay-language outlets and their environment desks, the independent online media (which has driven much environmental reporting), the Chinese- and Tamil-language press where relevant, and East Malaysian outlets for Sabah and Sarawak stories, which national desks often under-cover. Build a contact list with names and beats.

Building Reporter Relationships (The Key)

Give reporters accurate, sourced material and become their reliable contact. One trusted relationship beats a dozen releases. Offer access — to the site, to the community, to your experts — and be scrupulously accurate: Malaysia has active defamation exposure, and a single overstatement can invite legal threats and discredit the campaign.

Why media matters even when it doesn't make the front page

Coverage reaches the academic who will write your technical critique, the lawyer who will take the case, the NGO that will fund the expert, and the state assembly member who will ask the question. It creates a dated public record and makes a quiet degazettement politically expensive — which is often exactly how these decisions get reversed.

Sample Media Timeline

Launch with the display period or the gazette notification; refresh at each milestone — the mass comments, the SUHAKAM complaint, the court filing, the injunction, the judgment, the state's decision. Each is a natural news peg.

Media Measurement

Track coverage, but measure what matters: whether the state responds, whether experts and lawyers come forward, whether elected representatives engage, and whether the project's timeline is slipping.

EMAILS & LETTERS

Ready-to-adapt templates. Keep them factual, dated, and sourced. File important ones through the authority's registry or by registered post and keep dated proof — Malaysian deadlines are short and proof of submission matters. Have a lawyer review anything heading to court, and avoid unproven public accusations, which carry real defamation exposure.

8A. Email to a reporter (story pitch)

Subject: [District, State]: residents challenge [project] — display closes [date], documents attached

Dear [name],

A [project type] is proposed at [location, state]. The developer's own EIA admits [specific admitted impact, quoted, with page number], including [clearing of x hectares of forest reserve / sedimentation risk to the water intake serving [town]]. The public display closes on **[date]** / the degazettement was gazetted on **[date]**.

Residents, together with the [Orang Asli / native] community of [place] and [NGO], have submitted objections and are [preparing a SUHAKAM complaint / seeking judicial review]. The human stakes: [water/land/livelihood point].

I can connect you with residents and our technical advisers, and arrange a site visit. Could we talk this week?

[Name] · [Committee] · [phone] · [email]

8B. Letter to a decision-maker (State Exco / regulator / local council)

Subject: Objection to [project] — [file/reference number]

To the [YB State Executive Councillor for ___ / Director of Environment, [State] / President, [Local Council]]:

We write on behalf of the residents of [village/area] regarding [project] at [location]. We respectfully urge you to **[reject the EIA / rescind the proposed degazettement / refuse planning permission]** for the following reasons:

1. [Ground 1 — e.g. the project lies within the catchment of the [river] water intake serving [number] residents of

[town].]

2. [Ground 2 — e.g. it requires degazettement of [x] hectares of the [name] Permanent Reserved Forest.]
3. [Ground 3 — e.g. it affects land over which the [community] has long-standing customary rights, and no free, prior and informed consent has been obtained.]

We request a written response and a meeting, and we are ready to provide our documentation and expert assessments.

[Signatories, committee, contact]

8C. Comments at public display

Objection to the EIA report for [project], [regulator] reference [number], submitted within the public display period

We, residents of [village/area], object to the report on the following grounds: 1. **Water.** [The project lies [distance] upstream of the [name] water intake; sedimentation and contamination risks are inadequately assessed — see report pp. ____.] 2. **Forest.** [The project requires clearing/degazettement of [x] hectares of [name] Permanent Reserved Forest.] 3. **Customary rights.** [The land is subject to the customary rights of the [community], whose occupation is long-standing; the report does not address this or the requirement of consent.] 4. **Slope and flooding.** [Gradients and drainage create landslide and flood risk to [settlement].] 5. **Cumulative impacts.** [The report ignores [number] neighbouring licences/quarries in the same catchment.]

We ask that the report be **rejected**, or at minimum that the project be refused pending a full assessment of these matters.

[Date, names and addresses, contact; retain proof of submission]

8D. Request that the Director General direct public display (First Schedule projects)

Subject: Request for public display of the EIA report for [project]

To the Director General of Environmental Quality:

We understand that [project] falls within the First Schedule of the Environmental Quality (Prescribed Activities)(EIA) Order 2015, and that its EIA report is therefore not required to be placed on public display unless you direct otherwise.

We respectfully request that you so direct, on the grounds that: [the project affects the drinking-water catchment serving [town] / it affects [x] hectares of Permanent Reserved Forest / it affects land subject to the customary rights of the [community] / there is substantial documented public concern, evidenced by the attached [petition/objections]].

We attach our objections in any event and request that they be considered.

[Committee, date, contact]

8E. Request for documents

Subject: Request for the EIA report and related documents for [project]

To [the regulator / State Forestry Department / Land Office / Local Council]:

We request copies of: (1) the EIA report and approval, with conditions, for [project]; (2) the gazette notification and supporting papers for the proposed degazettement of [name] Permanent Reserved Forest; (3) the planning application and development order; and (4) the licence or lease documents.

We are prepared to pay the prescribed fees. Please advise the cost and how to collect. [Where the state has an FOI enactment, cite it here.]

[Name/committee, date, contact]

8F. Complaint to SUHAKAM

Subject: Complaint regarding [project] — land rights and absence of free, prior and informed consent

To the Human Rights Commission of Malaysia (SUHAKAM):

We, the [community] of [place], complain regarding [project] at [location], which affects land over which we hold customary rights through long-standing occupation and use. We were not meaningfully consulted, and our free, prior and informed consent was not sought or obtained, contrary to the standards SUHAKAM has previously set out.

We attach [evidence of occupation, maps, correspondence]. We request an investigation, findings, and recommendations, and ask to be kept informed.

[Community representatives, date, contact]

8G. Press release (effective)

FOR IMMEDIATE RELEASE — [date]

Residents and [community] oppose [project] over threat to [water supply / forest reserve / customary land]

[Committee], together with the [Orang Asli/native] community of [place] and [NGO], today [submitted objections to / filed judicial review against] [project] at [location], citing [top two grounds]. "[Short, human quote from an affected resident]," said [name, role].

The developer's own EIA admits [quoted impact]. The project requires the degazettement of [x] hectares of [name] Permanent Reserved Forest and approval from [regulator] and the [State] Government. The public display closes on [date].

Contact: [name, phone, email]. Photographs, the full objection, and interviews available on request.

8H. Memorandum to the State Government / assembly member

Subject: Memorandum on [project] and the proposed degazettement of [name] Forest Reserve

To the [Menteri Besar / Chief Minister / YB Assemblyman for ___]:

We, the undersigned residents of [area] — [number] signatories — respectfully submit this memorandum urging the State Government to **rescind the proposed degazettement and decline to approve [project]**.

The reserve protects the catchment supplying [town]; the project affects the customary land of the [community]; and [number] households depend on the affected land and water. We ask that this matter be raised in the State Legislative Assembly and that we be granted a meeting.

[Committee, date, contact; attach signatures and documentation]

Important Caveat

Templates are starting points. Adapt every one to your real facts, cite the actual reference and dates, and have counsel review anything heading to court. Deadlines are real — the **public display period** is short, and judicial review must be sought **promptly, commonly within three months** of the decision being communicated. Keep dated proof of everything you file. And keep public statements to documented facts: Malaysia has active defamation exposure, so let the documents carry the argument and route allegations of wrongdoing through the proper bodies.

IF YOU HAVE LITTLE TIME OR FEW RESOURCES: THE RAPID-FIRE VERSION

Not everyone can build a committee or run a multi-year campaign. If you have an afternoon a week, you can still do real damage to a bad project. In rough order of impact for the effort:

1. **Find out which regime and schedule you are in.** One phone call or search tells you whether you are under the federal Act, Sabah's enactment, or Sarawak's ordinance, and whether you get **public display** at all. Everything else follows from this.
2. **Submit comments during public display — or ask for display.** Substantive, page-referenced objections during the display window are free and count. If the project is First Schedule with no display, write to the **Director General asking that display be directed** (Section 8D) and submit objections anyway.
3. **Write to the State Exco member and your assembly representative** (Sections 8B and 8H). State decisions on

land and forests are political and have been reversed; a memorandum and an assembly question cost nothing and hit the decisive actor.

4. **If customary land is affected, start the evidence now.** Photograph graves, planted trees, farms, and houses; record elders while you can. This is the strongest legal ground in Malaysia and it depends on evidence that disappears.
5. **Lodge a free SUHAKAM complaint** if consent was not sought (Section 8F).
6. **Get the EIA and quote its worst admission back** to the regulator and the press. The developer's own words carry more weight than any outside claim.
7. **Speak to a lawyer about the three-month judicial review clock**, and send one accurate email to a reporter (Section 8A) leading with the water or forest angle.

If you do only the first three, you have identified your actual legal position, put objections on the record, and reached the politician who can stop it. That is a real contribution, not a token one.

WHEN THE SYSTEM IS TILTED

Malaysia's system leans toward development, splits power in ways that let each level point at the other, restricts participation for many projects, and — in Sarawak — makes it discretionary. Being honest about this is how you pick the tools that actually work.

What This Tilt DOES (and DOESN'T DO)

The tilt means the EIA is developer-funded, many categories get no public display, reports are hard and costly to obtain, there is no comprehensive federal freedom-of-information law, and states have strong revenue incentives to convert forest and land. It does **not** close the doors: **native customary rights** are enforceable and have produced real remedies; **judicial review** is available against both keys; **SUHAKAM** investigates and reports; **state governments face elections** and have reversed degazettements; and the courts have shown willingness to hold administrators to procedural requirements. The key is to attack both keys, build the rights case where it exists, and make the political cost visible.

Reading Your Tilt: Responsive, Mixed, Committed

- **Second Schedule, customary land, competitive state politics.** Here you have display, a rights claim, and a politically sensitive decision-maker — genuinely good odds, and the combination that has produced Malaysia's reversals.
- **Mixed.** A project the state wants but the public dislikes, with limited process. Weight shifts to political pressure, media, SUHAKAM, and judicial review.
- **Committed state, First Schedule or Sarawak.** Little or no participation, a determined state government, and possibly a politically connected proponent. Assume the administrative process gives you nothing; concentrate on **customary rights, judicial review with interim relief, national media, and federal-level pressure**, and plan for a long fight in which delay is itself a win.

Documented Malaysian Dynamics

The record shows both the wall and the way through. **States have reversed forest decisions under pressure** — proposals to degazette reserves have been abandoned after sustained campaigns by residents, Orang Asli communities, professionals, and the press, including in Selangor, demonstrating that a political decision can be politically undone. **The courts have built a real native title jurisprudence** — from **Adong bin Kuwau**, which applied common-law native title reasoning in Malaysia for the first time, through **Nor Anak Nyawai**, which held that the Sarawak Land Code does not abrogate pre-existing customary rights, to **Sagong Tasi**, which recognised rights in the land itself with a fiduciary duty and compensation, and **Madeli bin Salleh**, which confirmed these principles apply across all three regions. **But implementation lags badly** — SUHAKAM's National Inquiry documented systemic failures, including the widespread absence of **free, prior and informed consent**, and has since noted that favourable judgments have not been translated into administrative practice, that key customary concepts remain uncoded, and that the agency responsible for Orang Asli affairs is under-resourced. **And participation is genuinely weak** — costly reports, no display for many categories, no federal FOI law, and discretionary participation in Sarawak. The recurring lesson: **win on rights and politics; do not expect the process to save you.**

Assessment Framework — Determine Your Situation

Ask: which regime and schedule? Is there public display, and if not can it be directed? Is the land customary? Which state decisions are required, and how politically exposed is the decision-maker? Can we get the report and afford a lawyer? Is clearing imminent, so that interim relief is urgent? The answers tell you whether to lead with rights, with judicial review, or with state politics — usually a combination.

Direct Action: Factual Information (Descriptive, Not Prescriptive)

Malaysian campaigns rely on petitions, memoranda, vigils, community gatherings at threatened sites, and blockades of logging roads — the last being a long-standing form of resistance in Sarawak and Sabah in particular. Peaceful assembly is lawful but regulated: the **Peaceful Assembly Act 2012** requires advance notification to the police and imposes conditions, and blockades of works or roads may expose participants to arrest, trespass claims, and civil suits from companies. Know the law, take legal advice first, arrange legal support in advance for anyone detained, and prioritise the safety of community members, especially in remote areas where police response is slow and company security is present. This guide notes such tactics exist; it does not advise breaking the law, and the movement's safety and credibility are assets worth protecting.

Honest Assessment

Tilted fights are harder, and some are lost — projects have proceeded over strong objections, and native title claims can take a decade. But "harder" is not "hopeless": Malaysian communities have had degazettements reversed, approvals quashed, customary rights recognised, compensation awarded, and projects abandoned. Concentrate force where the tilt is weakest — the rights claim and the politically exposed state decision — protect your people, and treat years of delay as the real currency of these fights.

WHEN IT'S ACTUAL CORRUPTION — AND WHO IS CAPTURED

Most bad decisions are lawful decisions you disagree with. But capture is real, and it does not look the same in every institution. Read your situation actor by actor. Handle it carefully: Malaysia has active defamation exposure and litigious corporate actors, and an unproven public accusation is a legal risk to you and a gift to the other side.

The consultants and the report. The structural weakness: the EIA is prepared by a **registered consultant the developer hires and pays**, competing for repeat work. Signs: a report reading as advocacy, missing cumulative impacts, an implausibly benign water assessment. Lever: an independent technical critique, objections at display, and judicial review.

The state land, forestry, and mining machinery. The central pressure point in Malaysia, because these are **state powers with state revenue attached** — land premiums, timber and quarry royalties, and licence fees accrue to the state. Signs: a degazettement gazetted quietly, land alienated shortly before an application, a licence issued out of sequence. Lever: gazette and land records, the state assembly, the Auditor-General, and judicial review.

Local authorities and planning. Signs: planning permission granted despite objections or contrary to the local plan. Lever: the local plan itself, objection processes, and judicial review.

JAKOA and the Orang Asli framework. Not capture so much as chronic weakness: the responsible agency has been criticised as under-resourced and poorly coordinated with state authorities, leaving communities without effective administrative protection. Lever: SUHAKAM, the fiduciary-duty argument, and the courts.

The companies. Establish ownership, directorships, and shareholding from the **Companies Commission (SSM)** — documentary, provable facts. Watch for licences or land acquired before a project is public, and for politically connected shareholders, but prove it from records rather than rumour.

How to act on it, safely. Document from public sources before you speak. Route genuine allegations to the **MACC** for corruption, the **Auditor-General** for public money, and **SUHAKAM** for rights violations — and, above all, into your **court filings and state assembly questions**, where they are protected and consequential. Do not publish unproven accusations about named individuals or companies: in Malaysia that invites defamation proceedings that can drain a campaign. Name capture privately in your strategy; prove it publicly only when you can.

INTEGRATION & TIMELINE

The five steps run in parallel and reinforce each other. In Malaysia the timeline is shaped by two clocks that rarely align: a short administrative window at the start, and a long rights-and-politics fight that can run for years.

Realistic 12-Month Campaign Timeline

Months 1-2 (Foundation). - Identify the target precisely (Step 1) and write the one-page fact sheet — **regime, schedule, regulator, approving authority, every state decision required**, and every deadline. - Form the committee; where customary land is involved, support the community's own leadership to organise on its own terms. - **Contact a lawyer and an NGO early**, and confirm the judicial-review clock. - Obtain the EIA report and the gazette and land records. - Begin baseline documentation (Step 2, Layer 1) — water and customary occupation first — and start **community mapping**.

Months 2-3 (Launch). - File **mass comments at public display**, or request that display be directed and object anyway (Step 4, Track 1). - Send the memorandum to the **State Exco** and get a question raised in the assembly (Step 3, Phase 4). - Hold the community meeting and launch media timed to the display or gazette date (Steps 3 and 5). - Complete the EIA critique — water, slope, forest, cumulative impacts, procedure (Step 2, Layer 2).

Months 3-6 (Expansion). - Broaden the coalition — NGOs, professionals, academics, students, faith groups, downstream communities, and elected representatives (Step 3, Phase 3). - Lodge the **SUHAKAM complaint** where consent was not sought (Step 4, Track 2). - Finish the health/economic analysis (Step 2, Layer 3) and build the **customary occupation evidence** in earnest. - Prepare the judicial-review papers so they can be filed the moment a decision issues.

Months 6-12 (Pressure and decision). - Escalate political pressure on the state; keep the project's unpopularity visible (Step 3, Phase 4). - On approval, degazettement, or planning permission, file **judicial review promptly with interim relief** (Step 4, Track 3). - Pursue the **native customary rights** claim where applicable, understanding it runs on a longer timescale. - Sustain media at each milestone.

Beyond 12 months. - Native title claims and appeals commonly run for years; keep the community, counsel, and evidence archive intact. - If the project proceeds, monitor **compliance with EIA conditions** — breach is an offence and a fresh opening. - Watch the gazette: a decision reversed under pressure can be revived quietly later.

Warning Signs — Act Early

An EIA appears on public display; a gazette notification proposes a **degazettement** or land alienation; survey teams, boundary markers, or soil-test rigs appear; a planning application is advertised; contractors begin site access works. Each is a trigger to act immediately — and the gazette notification in particular is easy to miss and starts the clock on the decision that most often matters.

Key Principles (What Separates Winning Campaigns from Losing Ones)

Winning campaigns: determine the regime and schedule first; attack **both keys**; get legal advice in week one; build customary-occupation evidence early; file substantive comments and request display where there is none; take the fight to the **State Exco and the assembly**; seek interim relief before clearing starts; keep a broad, cross-community coalition; and sustain media. Losing campaigns: miss the display window or the three-month clock; challenge only the EIA and ignore the state decision; assume Sabah and Sarawak work like the Peninsula; leave customary evidence ungathered until litigation; and demobilise between decision points.

FINAL ASSESSMENT

Real Outcomes: What Winning Looks Like

"Winning" in Malaysia takes several forms, and it is worth naming them so you recognise a win when you get one: - an **EIA rejected**, or approved with conditions strict enough to change the project; - a **degazettement abandoned or reversed** and a forest reserve retained — a documented outcome of sustained public campaigns; - **planning permission refused**, or an approval **quashed on judicial review**; - **native customary rights recognised**, with declarations, injunctions, or compensation reflecting the land itself; - **SUHAKAM findings** that shift the political and administrative picture; - **years of**

delay that break a project's economics, or a quiet withdrawal; - and a community that has mapped its land, documented its rights, and is far stronger for the next threat.

Malaysian communities have achieved every one of these.

Decision Point: Continue, Modify, or Reassess

Reassess honestly at each milestone. If the land is customary and the occupation evidence is strong, the rights claim is usually worth pursuing even though it is slow — the remedies are real and the leverage begins long before judgment. If the administrative window has closed, shift to the state political route and to judicial review of whatever decision comes next. If a degazettement has been reversed, do not disband: watch the gazette, because reversals can themselves be reversed. Continuing is not always right; but in Malaysia, demobilising after a first success is a common way to lose slowly.

The Bottom Line

Malaysia's system leans toward development, splits power between a federal environmental regulator and state governments that control land, forests, and mines, keeps assessment in developer-paid hands, denies public display to many project categories, and — in Sarawak — leaves participation to the proponent. But it also gives communities genuinely strong tools: **public display and comment** where the project is on the Second Schedule, and the right to ask that display be directed where it is not; a **native customary rights** jurisprudence built by the courts from **Adong bin Kuwau** through **Nor Anak Nyawai**, **Sagong Tasi**, and **Madeli bin Salleh** that recognises surviving customary rights, a **fiduciary duty**, and compensation for the land itself; an accessible **SUHAKAM** that has documented the systemic failure of free, prior and informed consent; **judicial review** of both the environmental approval and the state decision, with interim relief; and, decisively, **state governments that face elections and have reversed forest and land decisions under public pressure**. Communities that identify their regime and schedule first, attack both keys, gather customary evidence while it exists, comment and object on the record, take the fight to the State Executive Council and the assembly, seek interim relief before the clearing starts, and hold a broad coalition together have kept reserves gazetted, had approvals quashed, won recognition of their rights, and outlasted developers — and can again. No single step wins; the combination does. Start today by finding out which law governs you, watching the gazette, and photographing what you stand to lose.